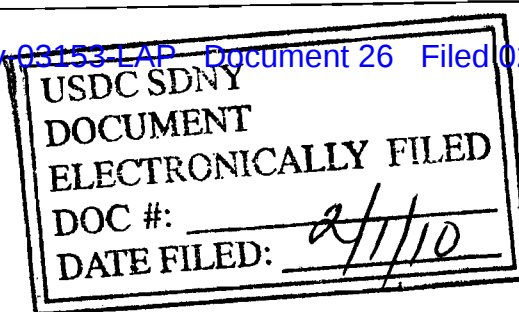




UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
KEVIN BELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, METROPOLITAN TRANSIT
AUTHORITY, NEW YORK CITY TRANSIT
AUTHORITY, P.O. "WILLIE" ARTILES, AND P.O.
"JIMMY" FRYER,

Defendants.
-----X

**STIPULATION AND
ORDER OF
VOLUNTARY
DISMISSAL WITH
PREJUDICE**

09 CV 3153 (LAP)

WHEREAS, plaintiff Kevin Bell commenced this action on April 1, 2009 by filing a complaint alleging, *inter alia*, violations of his civil rights pursuant to 42 USC § 1983 and numerous New York state law claims arising out of his arrest on or about September 20, 2007; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's allegations in this action and filed a Motion for Summary Judgment on all of plaintiff's alleged claims on October 23, 2009; and

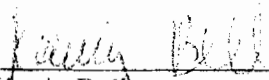
WHEREAS plaintiff now wants to voluntarily dismiss this action with full prejudice and on the merits and defendants have no objection thereto; and

WHEREAS no party hereto is an infant, incompetent person for whom a committee has been appointed or conservatee and no person not a party has an interest in the subject matter of the action;

IT IS HEREBY STIPULATED, AGREED AND ORDERED THAT:

1. Pursuant to Fed. R. Civ. P. 41(a), plaintiff Kevin Bell stipulates to the dismissal with prejudice of all claims asserted against defendants in this action;
2. This action shall be dismissed with prejudice without costs, expenses or fees to either party against the other.

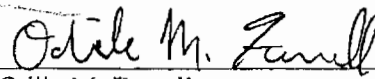
Dated: New York, New York
January 19, 2010


Kevin Bell
72 Claridge Avenue
Elmont, New York 11003

Frank C. Panetta, Esq.
Massimo & Panetta, P.C.
Attorney for Plaintiff
99 Quentin Roosevelt Boulevard, Suite 201
Garden City, New York 11530


By: Frank C. Panetta, Esq.

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
Attorney for Defendants
100 Church Street, Room 3-154
New York, New York 10007
(212) 442-8678

By: 
Odile M. Farrell
Assistant Corporation Counsel

The Clerk of the Court shall mark this action closed and all pending motions denied as moot.

SO ORDERED:

February 1, 2010


HON. LORETTA A. PRESKA
UNITED STATES DISTRICT JUDGE